

STATEMENT · PANEL · STRUCTURE

# policy-recommendation

A legislative recommendation — a stance verdict beside the recommendation, its evidence, and the specific ask to lawmakers.

ADOPT

# Adopt a 30-day deadline for breach notification.

## Faster notice cuts identity-theft losses

30-day states saw 22% lower per-victim costs [FTC 2025](#).

## The window is already industry practice

14 of the top 20 processors already do [IAPP survey](#).

## Enforcement is self-funding

Penalties fund the oversight office [LBB fiscal note](#).

### THE ASK

Vote YES on HB 214 § 3, or sponsor the floor amendment.

ADOPT

# Adopt a 30-day deadline for breach notification.

Consumers now learn of a breach 78 days late on average.

**Faster notice cuts identity-theft losses**

22% lower per-victim costs where the rule exists FTC 2025.

**Already industry practice**

14 of the top 20 processors notify within 30 days IAPP.

THE ASK

Vote YES on HB 214 § 3.

# Amend SB 88 to require bias audits before deployment.

Post-hoc audits catch bias only after applicants are screened out.

**Pre-deployment testing is preventive**

Later audits cannot un-reject candidates EEOC 2025.

**The change is one clause**

Move the trigger from § 4(b) to § 3 Leg. counsel.

THE ASK

Adopt the § 4(b) to § 3 move in the committee substitute.

OPPOSE

# Oppose AB 402's mandated key-escrow provision.

A state-held decryption key is a single point of failure for every resident's data.

**It weakens security for everyone**

A mandated backdoor is exploitable by any attacker who finds it NIST.

**It won't stop determined actors**

Open-source encryption stays available outside the state's reach EFF.

THE ASK

Vote NO on AB 402, or strike the § 5 escrow mandate.

DEFER

# Defer HR 19 pending an independent accuracy study.

Error rates for the proposed system are unpublished for the populations it would scan.

**The evidence base is missing**

No demographic accuracy audit exists for this vendor GAO request.

**A study is already funded**

The oversight office can report within one session fiscal note.

THE ASK

Refer HR 19 to interim study; revisit with the audit in hand.

# Amend SB 88 to require bias audits before deployment.

## Pre-deployment testing is the only preventive control

Audits after launch cannot un-reject filtered candidates (EEOC 2025).

## The change is narrow and drafted

It moves one clause from § 4(b) to § 3; no new agency Leg. counsel memo.

## Vendors can meet it today

## Three of five major ATS vendors already ship pre-deployment reports vendor survey

## THE ASK

Move the § 4(b) audit trigger to § 3 before markup.

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# When NOT to reach for policy-recommendation.

## Weighing two options

If the slide compares alternatives before choosing, use `split-compare` — its right zone is a 2-option grid plus a verdict card. `policy-recommendation` states one already-chosen position.

## More than four reasons

Past four the panel reads as a memo and the ask loses force. Keep the three strongest reasons here and move the full evidence to `list takeaway numbered`.

## A recommendation with no ask

Omitting the closing blockquote leaves the reader with a position but no action. Always name the specific legislative move — the bill, the section, the vote.

# When NOT to reach for policy-recommendation.

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## A topic-label heading

`## Breach Notification` is a topic, not a recommendation. Say the action: `## Adopt a 30-day breach-notification deadline.`

RELATED COMPONENTS

# See also.

`split-compare` — two options weighed before a verdict card

`decision` — naming a chosen path among options already presented

`list` — `takeaway numbered`: a flat enumeration of requirements without a stance or an ask

`regulatory-update` — a period digest of what changed, not a recommendation on one measure